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TAB 23



Board of Education Report

File #: Rep-331-24/25, **Version:** 1**Agenda Date:** 5/13/2025**In Control:** Special Education & Specialized Programs

Delegation of Authority to Negotiate and Execute Master Contracts for Special Education Supports and Services and Special Education Health and Nursing Services

Division of Special Education and Medical Services Division

Brief Description:

(Delegation of Authority to Negotiate and Execute Master Contracts for Special Education Supports and Services and Special Education Health and Nursing Services) Recommends the Board of Education delegate authority to the Superintendent and/or his designee(s) to execute NPS/A Master Contracts for Special Education Supports and Services, including Related Services and NPA Master Contracts for Special Education Health and Nursing Services for the 2025-26 school year, and each specific school year thereafter. Pursuant to state requirements (Education Code Section 56360 et seq. and Title 5 of the California Code of Regulations), stating each Special Education Local Plan Area (“SELPA”) ensure a continuum of program options are available to meet the needs of students with Individualized Education Programs (“IEP”) in special education and related services.

Action Proposed:

Approval to delegate authority to the Superintendent and/or his designee(s) to negotiate, execute, authorize payments, amend, exercise options, and terminate (whether by default or convenience), and take any other actions necessary, subject to and in accordance with California Education Code, California Government Code and any other applicable statutory provisions, for the administration of: Master Contracts for Special Education Supports and Services with CDE-certified NPS/As and Master Contracts for Special Education Health and Nursing Services with CDE-certified NPA’s in the not-to-exceed aggregate amount of \$248 million for the 2025-26 school year, and not-to-exceed \$255 million each specific year thereafter. In the 2025-26 school year, the total aggregate includes \$244 million for the Special Education Supports and Services and \$4 million for Special Education Health and Nursing Services. The total aggregate for each specific year thereafter is \$250 million for the Special Education Supports and Services and \$5 million for Special Education Health and Nursing Services.

Background:

The Individuals with Disabilities Education Act (“IDEA”) requires that the District provide qualified students with disabilities with special education supports and services, including health and nursing services as needed. These supports and services may include, but are not limited to nonpublic schools options, residential treatment center options, behavioral intervention services, speech and language services, occupational therapy, and health and nursing services. The District meets these obligations through its SELPA, and the Local Plan outlines how the services will be provided. The District is required to maintain a continuum of program options, including nonpublic, nonsectarian schools and nonpublic agencies, to meet the needs of its special education students (Ed. Code, §§ 56360, 56361, 56365.).

The Master Contract with each NPS and NPA must specify the financial agreement between the District and the NPS/A for the specified services in a student’s IEP that the NPS/A will provide (Ed. Code, § 56366(a)).

Pursuant to California Code of Regulations Section 3062(a), the District negotiates its Master Contract with NPS/As for Special Education Services and Supports, and Health and Nursing Services on an annual basis. Previously these services were negotiated as a single set of master contracts, however the District is separating NPS/A master contracts from health and nursing services master contracts to allow for the Medical Services Division to separately negotiate master contracts for NPA Health and Nursing Services. Keeping the contracts separate ensures that each contract meets the specific needs of the respective Divisions without conflict. It allows each Division to negotiate independently, tailoring terms and services to best meet the unique needs of their group of students. Periodic reports for contract actions necessary for the provision of special education supports and services and health and nursing services will be prepared in accordance with Board delegated authority to the Superintendent.

The NPS/A Master Contracts are utilized when an IEP Team determines that a student's needs cannot be met in the public school setting, and the IEP team agrees that placement and/or services are best provided by a NPS/A. In some instances, NPA services are considered due to District vacancies and are offered to meet legal obligations.

Expected Outcomes:

Approval of this item will allow the District to meet its legal obligation to make special education support and services and health and nursing services provided by NPS/As available to individuals with exceptional needs.

Board Options and Consequences:

A "YES" vote will authorize the Superintendent and/or his designee(s) to negotiate and execute master contracts to provide NP/S/A Special Education supports and services and health and nursing services to qualified students with disabilities.

A "NO" vote will result in the immediate unavailability of these services or discontinuance of services, or both, likely denying students with special needs, in violation of both federal and California law, a free appropriate public education. The unavailability or discontinuance of these services would likely result in costly litigation and increased future costs in securing these services. The postponement of the actions being requested will delay the contract award or delivery dates, resulting in costly litigation.

Policy Implications:

There are no policy implications for these agreements.

Budget Impact:

The \$248 million aggregate in the 2025-26 school year, and not-to-exceed \$255 million aggregate each specific year thereafter, will be funded by a combination of state and federal funds.

Student Impact:

These contracts support the provision of special education supports and services and health and nursing services required by federal and state special education laws.

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Equity Impact:

Component	Score	Score Rationale
Recognition	3	The award of NPS/A and NPA Master Contracts will support the District's efforts to provide mandated special education services and supports and health and nursing services for students with disabilities pursuant to their IEP. The District is required to maintain a continuum of program options, to include nonpublic agency services, to meet the needs of individuals with exceptional needs for health and nursing services as required by the federal IDEA and California law.
Resource Prioritization	3	The NPS/A and NPA contracts will make services available to qualified students with disabilities, to be provided through master contracts with California Department of Education certified nonpublic agencies.
Results	3	The annual NPS/A and NPA contracts will ensure that the District has the required continuum of program options available to meet the needs of individuals with exceptional needs for health and nursing services as required by the federal IDEA and California law.
TOTAL	9	

Issues and Analysis:

Staff expects to negotiate and execute master contracts for the 2025-26 school year with approximately 92 returning NPS/As for the provision of special education supports and services (Attachment A) for students pursuant to their IEP, additional contractors may be included in the final list as necessary. Staff expects to negotiate and execute master contracts for the 2025-26 school year with at least three NPAs for the provision of health and nursing services for students with disabilities pursuant to their IEP. The list of prospective contractors is attached (Attachment B), and additional contractors may be included in the final list as necessary. Staff will return to the Board for ratification of the master contracts after rates have been either negotiated or ordered by Los Angeles County Office of Education ("LACOE") as delegated by the California Department of Education.

Attachments:

Attachment A: Anticipated NPS/A Master Contracts for Special Education Supports and Services

Attachment B: Anticipated NPA Master Contracts for Special Education Health and Nursing Services

Submitted:

05/08/25

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RESPECTFULLY SUBMITTED,

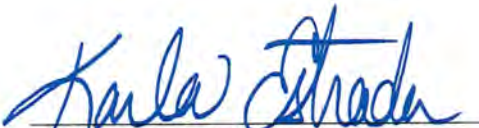
APPROVED BY:


 ALBERTO M. CARVALHO
 Superintendent


 PEDRO SALCIDO
 Deputy Superintendent Operations

APPROVED BY:

APPROVED BY:


 KARLA V. ESTRADA
 Deputy Superintendent Instruction

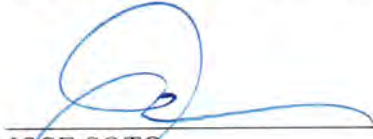

 ANTHONY AGUILAR
 Chief
 Special Education & Specialized Programs

☒ Approved as to form.

APPROVED & PRESENTED BY:

APPROVED & PRESENTED BY:

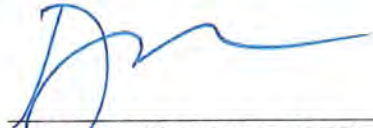

 SMITA MALHOTRA, MD
 Chief Medical Director
 Medical Services Division


 JOSE SOTO
 Executive Director
 Division of Special Education

REVIEWED BY:

REVIEWED BY:


 NOLBERTO DELGADILLO
 Deputy Chief Financial Officer


 DEVORA NAVERA REED
 General Counsel

☒ Approved as to budget impact statement.

☒ Approved as to form.

Anticipated NPS/A Master Contracts for Special Education Supports and Services*

CONTRACTOR

1. 360 BEHAVIORAL HEALTH
2. 360 DEGREE CUSTOMER INC. -LAS PER DIEM (NPA)
3. ADVANCING HIGHER EDUCATION & DEV (AHEAD) (NPA)
4. AEQUOR HEALTHCARE
5. ALPINE ACADEMY (NPS)
6. AUTISM BEHAVIOR CONSULTANTS (NPA)
7. AUTISM BEHAVIOR INTERVENTION (NPA)
8. AUTISM LEARNING PARTNERS (NPA)
9. AUTISM SPECT INTERV (NPA)
10. AUTISM SPECT THRPS (NPA)
11. BEHAVIOR & EDUC, INC (NPA)
12. BEHAVIOR FRONTIERS (NPA)
13. BEHAVIOR GUIDANCE GROUP (NPA)
14. BEHAVIORAL LEARNING NETWORK (NPA)
15. BMR HEALTH SVCS, INC (NPA)
16. BRIDGEPORT SCHOOL (NPS)
17. BRIDGEPORT WEST (NPS)
18. CAROUSEL SCHOOL (NPS)
19. CENTER FOR AUT&REL SVC,INC (NPA)
20. CHANGE ACADEMY-CALO (NPS)
21. CHILD COUNSELING & BEHAVIOR THERAPY CLINIC (NPA)
22. CHILD DEVELOPMENT INSTITUTE (NPA)
23. CHIME INSTITUTE (PRESCHOOL DIS) (NPA)
24. CINNAMON HILLS SCH (NPS)
25. CREATIVE BEHV CONSLT (NPA)
26. CTR BEH, ED & SOC THER. (NPA)
27. DEVELOPMENTAL DYNAMO INC (NPA)
28. DEVEREUX ACKERMAN (NPS)
29. DEVEREUX SCHOOL OF VIERA (NPS)
30. DUBNOFF SCHOOL (NPS)
31. EARLY STRIDES (NPA)
32. EDTHEORY, LLC
33. EKO MULTI PURPOSE CENTER, INC. (NPS)
34. ELLIOTT INSTITUTE, INC. (NPS)
35. ESSEY, CAROL (NPA)
36. FIRSTSTEPS FOR KIDS, INC (NPA)
37. FOCUS ON ALL CHILD THERAPIES (NPA)
38. GARY STROMBERG & ASSOCIATES -PER DIEM (NPA)
39. GOLDEN STATE SPEECH
40. HAWTHORNE ACADEMY (NPS)

**Additional contractors may be included in the final list for ratification, as necessary.*

Anticipated NPS/A Master Contracts for Special Education Supports and Services*

CONTRACTOR

41. HELP GROUP-NORTH HILLS PREP (NPS)
42. HERITAGE SCHOOL (NPS)
43. INCLUSIVE ED. & COMM PARTNERSHIP (NPA)
44. INSTITUTE FOR APPL. BEH. ANALYSIS (NPA)
45. INTENSIVE BEH INTRVEN CONSULTANTS (NPA)
46. INTERCARE THERAPY (NPA)
47. IRL ALMANSOR (NPS)
48. IRL WESTMORELAND (NPS)
49. JACK WEAVER SCHOOL (OAK GROVE) (NPS)
50. KAYNE ERAS CENTER (NPA)
51. KAYNE ERAS CENTER (NPS)
52. KYO AUTISM THERAPY
53. LEARNING & BEHV CTR (NPA)
54. LEHRHOFF, IRWIN (NPA)
55. LIGHT STREET SPECIAL EDUCATION SOLUTIONS (NPA)
56. LITTLE CITIZENS/WESTSIDE ACAD#1 MS (NPS)
57. LITTLE CITIZENS/WESTSIDE ACAD#3 ES (NPS)
58. LOGAN RIVER ACADEMY (NPS)
59. LOOKING GLASS CHILDRENS SERVICES (NPA)
60. LOVAAS INST./EARLY INTERVENTION (NPA)
61. MCRORY PEDIATRIC SERVICES (NPA)
62. NEW MEDISCAN II, LLC (NPA)
63. NORTHPOINT SCHOOL CFGC (NPS)
64. PERSONAL COACHING SYSTEMS (NPS)
65. PIONEER HLTH SVC LLC (NPA)
66. PRISTINE REHAB CARE (NPA)
67. PROGRESSUS THERAPY, LLC (NPA)
68. PROVO CANYON, UHS (NPS)
69. RCM HEALTH CARE SVCS (NPA)
70. REACHING THE STARS CTR. FOR AUT. (NPA)
71. SIERRA SCHOOL OF ALHAMBRA (NPS)
72. SLAUSON LEARNING CTR #1 (HIGH) (NPS)
73. SLAUSON LEARNING CTR II (ELEM) (NPS)
74. SOLIANT HEALTH INC (NPA)
75. SPEECH TIME (NPA)
76. SPEECH/LANG/EDUC. ASSOC. (NPA)
77. STEPPING STONES GR (NPA)
78. SUMMIT VIEW SCHOOL (NPS)
79. SUMMIT VIEW SCHOOL (WESTSIDE) (NPS)
80. SUNRISE SCHOOL (NPS)

**Additional contractors may be included in the final list for ratification, as necessary.*

Anticipated NPS/A Master Contracts for Special Education Supports and Services***CONTRACTOR**

- 81. SUNRISE WEST (NPS)
- 82. SWITZER LEARNING CENTER (NPS)
- 83. THERAPY IN ACTION (NPA)
- 84. THERAPY MANTRA, INC. (NPA)
- 85. THERAPY WEST (NPA)
- 86. TOTAL EDUCATION SOLUTIONS (NPA)
- 87. VERDUGO HILLS AUTISM PROJECT (NPA)
- 88. VILLAGE GLEN SCH (VALLEY) (NPS)
- 89. VISTA SCHOOL (NPS)
- 90. WAYFINDER FAMILY SERVICES(NPS)
- 91. WORKING WITH AUTISM (NPA)
- 92. YOUNG LEARNERS PRE-S & INTRVN CTR (NPS)

**Additional contractors may be included in the final list for ratification, as necessary.*

ATTACHMENT B

Anticipated NPA Master Contracts for Special Education Health and Nursing Services***CONTRACTOR**

1. RCM Health Care Services (NPA)
2. Soliant Health Inc. (NPA)

**Additional contractors may be included in the final list for ratification, as necessary.*